Syllabus

ALLEN, ALABAMA SECRETARY OF STATE, ET AL. *v.* MILLIGAN, ET AL.

ON APPLICATION FOR STAY

No. 25A1314. Decided June 2, 2026*

In *Louisiana* v. *Callais*, 608 U. S. 85, to resolve the tension between vote-dilution claims and the colorblind Constitution, the Court updated the standards for §2 liability under *Thornburg* v. *Gingles*, 478 U. S. 30. As relevant here, the Court held that for plaintiffs to satisfy the first *Gingles* precondition, a plaintiff's alternative map "must meet *all* the State's legitimate districting objectives" "just as well" as the State's own map. *Callais*, 608 U. S., at 119 (emphasis added). Those objectives include "any other goal not prohibited by the Constitution." *Ibid.* A plaintiff also "cannot use race as a districting criterion" in preparing the alternative map." *Ibid.* And, to prove the second and third *Gingles* preconditions, a plaintiff "must provide an analysis that controls for party affiliation" and "show that voters engage in racial bloc voting that cannot be explained by partisan affiliation." 608 U. S., at 119–120. After *Callais*, the Court vacated District Court injunctions that prevented Alabama from using a congressional map that it enacted in 2023. See *Allen* v. *Caster*, 608 U. S. ——. Two weeks after the injunctions were vacated, the District Court entered another injunction on largely the same grounds. State officials immediately applied to this Court for a stay of that injunction.

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Held: At this preliminary stage, the State has shown that it is entitled to interim relief from the District Court's injunction. The State is likely to succeed on the merits as to both the intentional vote dilution and §2 claims. As to the intentional vote-dilution claim, the District Court did not heed the presumption of legislative good faith because it interpreted the State's legal disagreement with the court's earlier remedial order as proof of discriminatory animus. And, as to both claims, the District Court likely erred because it found a violation even though the plaintiffs' alternative map would not perform just as well as to the State's constitutionally permissible criteria of keeping together a community of interest and avoiding the pairing of incumbents. The District Court also failed to follow *Callais*' instruction that the mere fact that voters of

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*Together with No. 25A1315, *Allen, Alabama Secretary of State, et al.* v. *Singleton, et al.*, and No. 25A1316, *Allen, Alabama Secretary of State, et al.* v. *Caster, et al.*, also on applications for stay.